

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased: 11/10/16

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CHRISTOPHER PELAEZ,

SUMMONS

Plaintiff,

Plaintiff designates Bronx
County as the place of trial

-against-

CITY OF NEW YORK AND P.O. ANDREW GREGES,

The basis of venue is:
Place of Occurrence

Defendants.

Occurred at:
3057 Bailey Avenue
Bronx, New York
County of Bronx

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 10, 2016


JEFFREY ARONSKY
JEFFREY A. ARONSKY, P.C.
Attorneys for Plaintiff
CHRISTOPHER PELAEZ
800 Second Avenue, Suite 301
New York, New York 10017
(212) 577-6600
Our File No. 03927

TO:

CITY OF NEW YORK
100 Church Street
New York, NY 10007

PO Andrew Greges
1 Police Plaza
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
CHRISTOPHER PELAEZ

Plaintiff,

-against-

CITY OF NEW YORK AND P.O. ANDREW GREGES,

Defendants.
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VERIFIED
COMPLAINT

Plaintiff, CHRISTOPHER PELAEZ, by his attorneys, **JEFFREY A. ARONSKY, P.C.**, sets forth the following as his Verified Complaint:

GENERAL ALLEGATIONS

1. On August 13, 2015, defendant, CITY OF NEW YORK, was and still is a municipal corporation existing under and by virtue of the laws of the State of New York.
2. On August 13, 2015, defendant, CITY OF NEW YORK, owned, operated, maintained and controlled the New York City Police Department.
3. On August 13, 2015, defendant, CITY OF NEW YORK, employed defendant, P.O. Andrew Greges.
4. On November 6, 2015, plaintiff filed a Notice of Claim with defendant, CITY OF NEW YORK, pursuant to General Municipal Law section 50-e.
5. More than thirty (30) days have elapsed since the service of the Notice of Claim, and defendants have refused to adjust and/or make payment upon plaintiff's claim.
6. Pursuant to General Municipal Law section 50-h, defendant, CITY OF NEW YORK, will conduct a statutory hearing of the plaintiff on December 5, 2016.

7. This action is commenced within one year and ninety (90) days after the happening of the event upon which this claim is based and in compliance with General Municipal Law section 50-i.

8. On August 13, 2015, while plaintiff, CHRISTOPHER PELAEZ, was lawfully present in front of 3057 Bailey Avenue, Bronx, New York, he was assaulted, battered, humiliated, embarrassed, and arrested, without any cause or provocation, by P.O. Andrew Greges, and other New York City Police Department officers, while the officers were on duty and acting within the scope of their employment.

9. On September 16, 2015, all criminal charges resulting from plaintiff's arrest of August 13, 2015 were dismissed.

AS AND FOR A FIRST CAUSE OF ACTION

10. Plaintiff, CHRISTOPHER PELAEZ, repeats, reiterates and realleges each and every allegation set forth above as if described more fully herein at length.

11. On August 13, 2015, while plaintiff, CHRISTOPHER PELAEZ, was lawfully present in front of 3057 Bailey Avenue, Bronx, New York, he was assaulted, battered, humiliated, embarrassed, and arrested, without any cause or provocation, by P.O. Andrew Greges, and other New York City Police Department officers, while the officers were on duty and acting within the scope of their employment.

12. Said occurrence resulted in severe physical and psychological injuries to plaintiff, who was caused to suffer due solely to the actions of said New York City Police Officers, with no culpable conduct on the part of the plaintiff.

13. As a result of said assault and battery, plaintiff was seriously injured, both physically and psychologically, causing him to incur substantial medical and hospital expenses, and continuous pain and suffering, all to his damage in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

AS AND FOR A SECOND CAUSE OF ACTION

14. Plaintiff, CHRISTOPHER PELAEZ, repeats, reiterates and realleges each and every allegation set forth above as if described more fully herein at length.

15. On August 13, 2015, said police officers carelessly and negligently used excessive force against plaintiff in violation of defendant, CITY OF NEW YORK'S, own rules and regulation regarding the use of excessive force.

16. As a result of said excessive force and negligence, plaintiff was substantially humiliated and embarrassed and sustained severe bodily injury and continues to suffer to date.

17. As a result of said use of excessive force, plaintiff was seriously injured, both physically and psychologically, causing him to incur substantial medical and hospital expenses, and continuous pain and suffering, all to his damage in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

AS AND FOR A THIRD CAUSE OF ACTION

18. Plaintiff, CHRISTOPHER PELAEZ, repeats, reiterates and realleges each and every allegation set forth above as if described more fully herein at length.

19. Defendant, CITY OF NEW YORK, through its agents, servants and/or employees, was negligent in the screening, training and supervision of its employees, including, but not limited to the New York City Police Department Officers involved herein, and failed to take all the necessary and proper steps to prevent the aforesaid occurrence.

20. As a result of the negligence of defendant, CITY OF NEW YORK, in the screening, training, and supervision of the police officers involved, plaintiff sustained both emotional and physical injuries.

21. As a result of said negligence, plaintiff was seriously injured, both physically and psychologically, causing him to incur substantial medical and hospital expenses, and

continuous pain and suffering, all to his damage in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

AS AND FOR A FOURTH CAUSE OF ACTION

22. Plaintiff, CHRISTOPHER PELAEZ, repeats, reiterates and realleges each and every allegation set forth above as if described more fully herein at length.

23. Defendant, CITY OF NEW YORK, through its agents, servants and/or employees, acted under color of law, i.e., under the statutes, regulations, customs and ordinances of the State of New York, and its action has deprived plaintiff of his rights, privileges and immunity secured by the Constitution of the United States of America, and the laws there under, pursuant to Title 42 of the United States Code, sections 1981, 1983 and 1985, and under 28 U.S.C. section 1343.

24. As a result of the above, plaintiff was seriously injured, both physically and psychologically, causing him to incur substantial medical and hospital expenses, and continuous pain and suffering, all to his damage in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

AS AND FOR A FIFTH CAUSE OF ACTION

25. Plaintiff, CHRISTOPHER PELAEZ, repeats, reiterates and realleges each and every allegation set forth above as if described more fully herein at length.

26. Defendant, CITY OF NEW YORK, through its agents, servants and/or employees, unlawfully arrested plaintiff, without reason, as a result of the occurrence described above.

27. As a result of the above, plaintiff was seriously injured, both physically and psychologically, causing him to incur substantial medical and hospital expenses, and

continuous pain and suffering, all to his damage in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

AS AND FOR A SIXTH CAUSE ACTION

28. Plaintiff, CHRISTOPHER PELAEZ, repeats, reiterates and realleges each and every allegation set forth above as if described more fully herein at length.

29. Defendant, CITY OF NEW YORK, through its agents, servants and/or employees, maliciously prosecuted and detained plaintiff, without just cause, as a result of the occurrence described above.

30. As a result of the above, plaintiff was seriously injured, both physically and psychologically, causing him to incur substantial medical and hospital expenses, and continuous pain and suffering, all to his damage in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

WHEREFORE, plaintiff demands judgment against the defendants in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction in this matter, together with the costs and disbursements of this action.

Dated: New York, New York
November 10, 2016

Yours, etc.



JEFFREY ARONSKY
JEFFREY A. ARONSKY, P.C.
Attorneys for Plaintiff
CHRIS PELAEZ
800 Second Avenue, Suite 301
New York, New York 10017
(212) 577-6600
Our File No. 03927

ATTORNEY'S VERIFICATION

JEFFREY A. ARONSKY, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at JEFFREY A. ARONSKY, attorneys of record for Plaintiff, Chris Pelaez. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

DATED: New York, New York
 November 10, 2016



JEFFREY ARONSKY

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

CHRISTOPHER PELAEZ,

Plaintiff,

-against-

CITY OF NEW YORK AND P.O. ANDREW GREGES,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

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